

Order Sheet
IN THE LAHORE HIGH COURT
Multan Bench, Multan
Judicial Department

Objection Civil No. 100-26

Muhammad Shafiq Shah.		Vs.	Govt. of Punjab, etc.
Sr. No. of order/ proceedings	Date of order/ Proceeding	Order with signature of Judge, and that of Parties' counsel, where necessary	
	21.01.2026.	Mr. Muhammad Mudassir Sumra, Advocate for petitioner. Mr. Musleh-ud-Din Khan, Assistant Advocate General.	

The petitioner has filed constitutional petition under Article 199 of the Constitution of Pakistan, 1973 to call in question notice dated 13.10.2025 issued by Respondent No. 3/ Sub-Divisional Canal Officer, Dhingana Canal Division, D.G.Khan, whereby the petitioner has been directed to remove illegal construction raised by him on the property owned by the Irrigation department. The petitioner has made the following prayer in this petition:

*‘Under the circumstances it is respectfully prayed that this writ petition may kindly be graced with acceptance, notice dated 13.10.2025 issued by the respondent No. 3 be set aside and he be prohibited from interfering into lawful possession of the petitioner and pro forma respondents and demolishing their shops or taking any adverse action in disregard to the judgment and decree dated 10.07.1997 passed by the Civil Judge Dera Ghazi Khan.
Any other relief which this honourable Court deems fit may also be granted. ’*

2. Along with the writ petition an uncertified photocopy of the judgment dated 10.07.1997 has been attached as Annexure-C. This is a photocopy which is not a photocopy of a previously certified

copy rather a simple photocopy of the said judgment/order, without any stamp or mark upon the same showing the source from which the same was obtained or copied and it *prima facie* appears as if it had been obtained directly from the court file. Office has raised objection at serial No. 6 of the objection sheet to the effect that certified copy of the impugned order dated 10.07.1997 be filed.

3. Although the Judgment dated 10.07.1997 has not been challenged through the constitutional petition yet in the prayer clause while challenging the notice issued by the respondents, the petitioner seeks its implementation, hence this is an important document for decision of constitutional petition filed before this Court, however, no presumption of authenticity can be attached to such a copy of the order, which is neither a certified copy nor a photocopy of the certified copies of the said order and such a copy is not issued by the copying agency of the court under ordinary circumstances.

4. In order to appreciate aforesaid aspect of the matter for decision of office objection, it is important to note here that Article 87 of the Qanun-e-Shahadat Order, 1984 ('QSO') authorizes the officer having custody of a public document to issue certified copy of the same and under Article 88 QSO such certified copies may be produced in proof of the contents of the public documents or parts of the

public documents of which the same purport to be copies; the said Articles are reproduced below:-

“87. Certified copies of public documents. Every public officer having the custody of a public document, which any person has a right to inspect, shall give that person on demand a copy of it on payment of the legal fees therefor, together with a certificate written at the foot of such copy that it is a true copy of such document or part thereof, as the case may be, and such certificate shall be dated and subscribed by such officer with his name and his official title, and shall be sealed, whenever such officer is authorized by law to make use of a seal, and such copies so certified shall be called certified copies.

Explanation. Any officer, who, by the ordinary course of official duty, is authorized to deliver such copies, shall be deemed to have the custody of such documents within the meaning of this Article.

88. Proof of documents by production of certified Copies. Such certified copies may be produced in proof of the contents of the public documents or parts of the public documents of which they purport to be copies.”

5. It is pertinent to note here that Article 90 of QSO reproduced below, expressly raises presumption of law as to the genuineness of certified copies.

“90. Presumption as to the genuineness of certified copies. (1) The Court shall presume every document purporting to be a certificate, certified copy or other document, which is by law declared to be admissible as evidence of any particular fact which purports to be duly certified by any officer of the Federal Government or a Provincial Government to be genuine.

Provided that such document is substantially in the form and purports to

be executed in the manner directed by law in that behalf.

(2)The Court shall also presume that any officer by whom any such document purports to be signed or certified, held, when he signed it, the official character which he claims in such document.”

6. It is important to mention here that the petitioner was required to file on record certified copy of the court orders/judgment relied upon or impugned by him in ordinary circumstances, however, in certain circumstances, he could be permitted to produce on record photocopy of certified copy of a court order/judgment and file application for dispensing with production of certified copy of the same, which application would be decided by the court on its own merits in accordance with law. In somewhat similar circumstances, this Court in case titled **Akeel Ahmad versus Chairman, Punjab Public Service Commission, Lahore and others** (PLD 2024 Lahore 228), has observed that a photocopy of a court order, which is neither a certified copy nor a photocopy of certified court order, could not be attached with the petition as its authenticity was not beyond doubt.

7. In view of what has been discussed above, the office objection relating to filing of certified copy of judgment dated 10.07.1997 is **sustained** for the reason that the petitioner has placed on record an uncertified copy of the said judgment, which even

otherwise is not copy of certified copy of the order and as said copy could not have been obtained by the petitioner from the court under ordinary circumstances and presumption of authenticity was not attached to the same, hence could not be allowed to be placed on the record. Consequently, the petitioner may either file certified copy of the afore referred judgment or file a copy of certified copy of the said judgment and file an application for dispensing with production of the certified copy of the said judgment or in the alternate may remove the afore referred copy from the instant file and re-file the same.

(Muzamil Akhtar Shabir)
Judge

Zeeshan Khan

Approved for reporting